

TENTATIVE RULING

Case: **Mitchell v. Langston**
 Case No. CV2025-3055

Hearing Date: **March 13, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Frederick Mitchell’s motion to strike the materially false and improper matter is **DROPPED FROM CALENDAR AS MOOT.** (Code Civ. Proc., §§ 436, subd. (a), 2015.5.) On March 5, 2026, this Court sustained without leave to amend defendant Theresa Langston’s demurrer. (See *In re S.P.* (2020) 53 Cal.App.5th 13, 16 [“Courts do not decide issues that can provide no effective relief for the parties or will have no impact on their future rights”]; see also *Hagan Engineering, Inc. v. Mills* (2003) 115 Cal.App.4th 1004, 1007-1008.)

TENTATIVE RULING

Case: **Rae v. State of California et al.**
Case No. CV2023-2113

Hearing Date: **March 13, 2026** **Department Eight** **9:00 a.m.**

Motion for relief:

The Court rules on plaintiff Matthew Rae's motion for order granting plaintiff relief as follows:

- The motion for relief as to the Court's August 20, 2024, Order, is **DENIED**. (Code Civ. Proc., § 473, subd. (b).) The motion as to this Order is untimely. (*Ibid.*)
- The motion for relief as to the Judgment of Dismissal entered on October 24, 2025, is **DENIED**. (Code Civ. Proc., § 473, subd. (b).) Plaintiff fails to show that the entry of the Judgment of Dismissal was the result of his mistake, inadvertence, surprise or excusable neglect. (*Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921 – 922; see generally Rae Decl.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for joinder:

Plaintiff Matthew Rae's motion for compulsory joinder and leave to amend is **DENIED**. (Code Civ. Proc., §§ 389, 472a, 473, 576.) Given the Judgment of Dismissal entered on October 24, 2025, and the Court's ruling on plaintiff's motion for relief, the Court lacks subject matter jurisdiction to determine this motion. (See *Hagan Engineering, Inc. v. Mills* (2003) 115 Cal.App.4th 1004, 1008.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.